Om Prakash Singh vs State Of U.P. And 3 Others on 8 July, 2021

Author: Rajeev Misra

Bench: Rajeev Misra

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 7

Case :- PUBLIC INTEREST LITIGATION (PIL) No. - 1782 of 2020

Petitioner :- Om Prakash Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Santosh Kumar Jaiswal

Counsel for Respondent :- C.S.C.,Bhupendra Kumar Tripathi,Sunil Kumar Singh

Hon'ble Rajeev Misra,J.
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Heard Mr. Santosh Kumar Jaiswal, learned counsel for petitioner and Mr. Bhupendra Kumar Tripathi, learned counsel representing respondent 4 Gaon Sabha, who are available on audio/video link. Learned Standing Counsel representing respondents 1, 2 and 3 is also available.

Om Prakash Singh, writ petitioner has filed this petition as P.I.L. claiming following reliefs:-

> (i) issue a writ, order or direction in the nature of mandamus commanding the respondent no. 2, 3 and 4 to stop the illegal construction over Khasra No. 58 area about 0.0350 hectare recorded as Play Ground in Revenue Records situate at Village Mitthanpara Pargana and Tehsil Sadar Ghazipur, District Ghazipur and reserved for Play Ground.

(ii) issue a writ, order or direction in the nature of mandamus commanding the respondent no. 2 and 3 to take appropriate action against the responsible persons during the pendency of instant writ petition before this Hon'ble Court.

(iii) issue any other suitable writ, order or direction as this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

(iv) award the cost of the petition in favour of petitioner.

Writ petition came up for admission on 4.1.2021 and this Court passed following order:-

"Sri Santosh Kumar Jaiswal, learned counsel for the petitioner is permitted to implead "Additional Development Officer, Sadar, Ghazipur" as co-respondent No.5 in the array of the parties to the petition during the course of the day.

Sri Santosh Kumar Jaiswal, learned counsel for the petitioner contends that the petitioner has intimated the competent authority about the encroachment of public land. Despite receipt of such information with material particulars the competent authority failed to discharge the statutory obligations under Section 67(2) of the Uttar Pradesh Revenue Code, 2006.

The proceedings are pending for an inordinately long time, without good reasons. The authorities have not implemented the statutory mandate.

Due to apathy and failure on part of the respondents have been emboldened to continue the encroachment with a sense of impunity.

Public land in the State of U.P. is most vulnerable to encroachment. Encroachment over such public land is not countenanced by the legislature. The Uttar Pradesh Revenue Code, 2006, is the response of the legislature to deal with the endemic problem of encroachment over public lands. The purpose of legislative intent will be defeated in case the statutory authorities do not discharge their statutory functions in a timely manner. Encroachment on public lands causes irreversible damage to public interest.

The courts too have set their face against such encroachment.

The officials charged with the duty, to investigate and clear such encroachment, are under an obligation of law to proceed with dispatch, efficiency and in conformity with the provisions of the statute while dealing with issues relating to encroachment over public lands.

Learned Standing Counsel for the State - respondents to file counter affidavit indicating as to why the public land in the nature of the playground has been

> encroached or toilet and panchayat bhawan have been illegally constructed and the said authority has been prima facie negligent in performance of its statutory duties.
>
> In case, the counter affidavit are not forthcoming on the next date the District Magistrate, Ghazipur shall remain present in person before this Court along with the records, to assist the Court.
>
> Put up on 10.02.2021 in the list of fresh cases before the appropriate Bench.
>
> It is made clear that this case shall not be treated as tied up or part heard to this Bench."

Pursuant to order dated 4.1.2021, a counter affidavit has been filed by respondents 2 and 3. Learned counsel for petitioner has invited attention of Court to the averments made in paragraph 6 of the counter affidavit filed by respondents 2 and 3. For ready reference same is reproduced herein under:-

> "That the contents of paragraph nos. 7 to 15 of the writ petition are not admitted, as stated, hence are denied. In reply thereto it is submitted that in the khatauni year 1424-1429 Fasli, the land of Khata No. 150, situated in Gata No. 58 area 0.0350 hectare, in village Mitthanpara, Pargana Tehsil and District Ghazipur, is recorded as KHEL KA MAIDAN in revenue record. The land of Gata No. 58 area 0.0350 hectare is reserved for KHEL KA MAIDAN and are vacant on the spot. There is no construction of any Public Toilet or Panchayat Bhavan over the land in question. As such, the averments of the petitioner is wrong and baseless, because the land in question i.e. the land of Khata No. 1250, situated in Gata No. 58 area 0.0350 hectare, in village Mitthanpara, Pargana Tehsil and District Ghazipur is recorded as KHEL KA MAIDAN in the revenue record as mentioned in the Khatauni year 1424-1429 Fasli, which is reserved for KHEL KA MAIDAN. Hence, the present PIL lacks merits and deserves to the dismissed with costs. For kind perusal of this Hon'ble Court, the copy of Khatauni year 14254-1429 fasli along with copy of Khasra and C.H. Form 41 & 45 are being filed herewith and marked collective as Annexure No. CA-1 to this affidavit. It is further stated that in this regard, the Area Lekhpal and Revenue Inspector has given their reports to the Tehsildar Sadar, Ghazipur on 06.02.2021. For kind perusal of this Hon'ble Court, the copy of the report dated 06.02.2021 is being filed herewith and marked as Annexure No. CA-2 to this affidavit."

Learned counsel for petitioner contends that in view of aforesaid, present writ petition filed as Public Interest Litigation be disposed of taking into consideration the averments made in paragraph 6 of the counter affidavit.

Having heard learned counsel for petitioner, Mr. Bhupendra Kumar Tripathi, learned counsel representing respondent 4 and learned Standing Counsel representing 1, 2 and 3, this Court is of the view that no cause of action survives in the present writ petition filed as Public Interest Litigation.

The undertaking given in paragraph 6 of the counter affidavit is accepted. Accordingly, present writ petition is disposed of in the light of undertaking given in paragraph 6 of the counter affidavit.

The writ petition filed as Public Interest Litigation is, accordingly, disposed of finally.

Order Date :- 8.7.2021 HSM